

25CV04676 Edward Connaughton vs City of Santa Barbara

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-28

Motion: CMC; Demurrer

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Tentative Ruling: Edward Connaughton vs City of Santa Barbara

Case Number

25CV04676

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/28/2026 - 10:00

Nature of Proceedings

CMC; Demurrer

Tentative Ruling

Edward Connaughton v. City of Santa Barbara

Case No. 25CV04676

Hearing Date: September 28, 2026

MATTER: Defendant City of Santa Barbara's Demurrer to Plaintiff Edward Connaughton's First Amended Complaint

ATTORNEYS: For Plaintiff Edward Connaughton: Self-Represented

For Defendant City of Santa Barbara: Sarah J. Knecht, Tom R. Shapiro, Delaney R. Satz, Office of the City Attorney

TENTATIVE RULING: The demurrer of City of Santa Barbara to the first amended complaint is sustained with leave to amend. Plaintiff is granted leave to file and serve a second amended complaint on or before October 16, 2026.

Background:

Plaintiff Edward Connaughton commenced this action on July 29, 2025, by filing a Judicial Council form complaint against defendant City of Santa Barbara (City) for targeting, harassment, and termination. (Compl., ¶ 10.) However, the causes of action set forth in the attachment are for general negligence and intentional tort.

On February 9, 2026, the court sustained the City's demurrer to the complaint with leave to amend because the complaint fails to state a cause of action and is uncertain.

On February 27, 2026, plaintiff filed a first amended complaint (FAC). The FAC is set forth on Judicial Counsel form PLD-PI-001. The box is selected for causes of action, "other," and the FAC specifies the attached causes of action are for wrongful termination, targeting, and harassment. (FAC, ¶ 10.)

The FAC attaches an "amended declaration" dated February 27, 2026 (Amended Decl.). However, the causes of action set forth in the Amended Decl. are different than those set forth in the FAC. The Amended Decl. sets forth claims for intentional tort, denial of due process, and denial of discovery. (Amended Decl., pp. 2-3.)

The damages selected on the Judicial Council form FAC are wage loss, general damage, and loss of earning capacity. (FAC, ¶ 11.) Plaintiff seeks compensatory damages according to proof in the amount of \$250,000. (FAC, ¶ 14.)

As stated in the Amended Decl.: Plaintiff was terminated from employment as Airport Facilities Supervisor on July 27, 2023. (Amended Decl., p. 2.) Plaintiff attempted to appeal his termination within the statutory timeframe but received no substantive response. (Ibid.) Plaintiff was subjected to harassment and retaliation in violation of the California Fair Housing and Employment Act (FEHA). (Ibid.) Plaintiff made complaints to his supervisors. (Ibid.) The City lied during his termination proceedings. (Amended Decl., p. 3.) Plaintiff was denied due process because plaintiff's request for a "Skelly hearing" was refused. (Ibid.) Plaintiff was denied discovery permitted by Government Code sections 7920 through 7931. (Ibid.) Plaintiff suffered lost wages, emotional distress, and other damages. (Ibid.)

The City demurs to the FAC on the grounds that: (1) the court lacks jurisdiction over the case due to plaintiff's failure to comply with Government Code section 810, et seq.; (2) the FAC does not state facts sufficient to constitute any causes of action; and (3) the FAC is ambiguous and unintelligible. Plaintiff filed an opposition. The City filed a reply.

Analysis:

(1) Legal Standard for Demurrer

" 'The rules by which the sufficiency of a complaint is tested against a general demurrer are well settled. We not only treat the demurrer as admitting all material facts properly pleaded, but also 'give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.' " (Zhang v. Superior Court (2013) 57 Cal.4th 364, 370, internal quotation marks and citations omitted.) "Because the function of a demurrer is to test the sufficiency of a pleading as a matter of law, we ... assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law. [Citation.] It is error for the trial court to sustain a demurrer if the plaintiff has stated a cause of action under any possible legal theory, and it is an abuse of discretion for the court to sustain a demurrer without leave to amend if the plaintiff has

shown there is a reasonable possibility a defect can be cured by amendment.” (California Logistics, Inc. v. State of California (2008) 161 Cal.App.4th 242, 247.) “[I]n ruling on a demurrer the trial court may take into account in addition to the complaint itself any matter that may be properly considered under the doctrine of judicial notice.” (Cruz v. County of Los Angeles (1985) 173 Cal.App.3d 1131, 1133-1134.)

(2) The FAC Is Uncertain

“The pleadings are the formal allegations by the parties of their respective claims and defenses, for the judgment of the Court.” (Code Civ. Proc., § 420.) “The forms of pleading in civil actions, and the rules by which the sufficiency of the pleadings is to be determined, are those prescribed in this Code.” (Code Civ. Proc., § 421.) “The pleadings allowed in civil actions are complaints, demurrers, answers, and cross-complaints.” (Code Civ. Proc., § 422.10.) “A complaint or cross-complaint shall contain ... [¶] (1) A statement of the facts constituting the cause of action, in ordinary and concise language....” (Code Civ. Proc., § 425.10, subd. (a)(1).) A declaration is a method to present evidence, but is not a complaint. (See Code Civ. Proc., § 2015.5.)

“An amended pleading supplants (i.e., entirely replaces) the prior pleading and it, standing alone, contains all the plaintiff’s allegations and requests for relief.” (Foster v. Sexton (2021) 61 Cal.App.5th 998, 1035.) Plaintiff may not rely on earlier pleadings which have been replaced.

The court agrees with the City that the FAC “is also subject to demurrer on the grounds of uncertainty and unintelligibility, as it attempts to state numerous causes of action in a very loose and rambling manner” (Craig v. City of Los Angeles (1941) 44 Cal.App.2d 71, 73.) As noted above, the FAC lists causes of action for wrongful termination, targeting, and harassment, yet attaches a declaration alleging causes of action for intentional tort, denial of due process, and for denial of discovery. (See FAC & Amended Decl.) This is confusing.

Based on the Amended Decl., it appears plaintiff alleges he was terminated from his employment in 2023, but the FAC does not state facts establishing the termination was unlawful. It appears plaintiff disputes his termination, but the FAC does not explain with sufficient facts the basis for this dispute. It appears plaintiff claims he was not provided due process pertaining to his termination by way of a “Skelly” hearing, but no facts are alleged as to what occurred, what due process should have been granted, what if any process plaintiff now seeks by way of this action, or how the alleged lack of due process should be remedied. Plaintiff has not stated the elements of any cause of action for monetary damages, including compliance with the Tort Claims Act or facts indicating the Act does not apply. A complaint cannot rely on stated conclusions. It must set forth a statement of the facts constituting the cause of action, in ordinary and concise language. (Code Civ. Proc., § 425.10, subd. (a)(1).)

(3) Non-FEHA Claims

The FAC alleges that the City is a public entity. (FAC, ¶ 5.) “Government Code section 900 et seq., part of the Tort Claims Act, ‘prescribes the manner in which public entities may be sued.’ ” (V.C. v. Los Angeles Unified School Dist. (2006) 139 Cal.App.4th 499, 507.) “Where the claim filing requirements of the Tort Claims Act are applicable, ‘[t]imely compliance ... and rejection of the claim by the governmental agency must be pleaded in order to state a cause of action.’ [Citations.] The claim filing requirements apply to ‘all claims for money or damages against the state ... for an injury for which the state is liable.’ ” (State of California v. Superior Court (1983) 143 Cal.App.3d 754, 757.)

“[L]iability of a “ ‘local public entity’ ” such as the City is subject to a procedural condition precedent; that is to say, the timely filing of a written claim with the proper officer or body is an element of a valid cause of action against a public entity. [Citations.] Compliance is mandatory, and cannot be excused on the theory that the entity was not surprised by the suit. “ ‘It is not the purpose of the claims statutes to prevent surprise. Rather, the purpose of these statutes is to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation. [Citations.] It is well-settled that claims statutes must be satisfied even in [the] face of the public entity’s actual knowledge of the circumstances surrounding the claim. Such knowledge-standing alone-constitutes neither substantial compliance nor basis for estoppel.’ ” [Citation.] The failure to timely present a proper claim for money or damages to a public

entity bars a plaintiff from filing a lawsuit against that entity. [Citation.]” (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 374.)

“A claim relating to a cause of action for death or for injury to person or to personal property or growing crops shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the cause of action.” (Gov. Code, § 911.2, subd. (a).)

“A claim shall be presented by the claimant or by a person acting on his or her behalf and shall show all of the following:

“(a) The name and post office address of the claimant.

“(b) The post office address to which the person presenting the claim desires notices to be sent.

“(c) The date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted.

“(d) A general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim.

“(e) The name or names of the public employee or employees causing the injury, damage, or loss, if known.

“(f) The amount claimed if it totals less than ten thousand dollars (\$10,000) as of the date of presentation of the claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case.” (Gov. Code, § 910.)

A public entity has no liability for any injury to any person except as provided by statute. (Gov. Code, § 815, subd. (a); Tuthill v. City of San Buenaventura (2014) 223 Cal.App.4th 1081, 1089.) “[I]n California all government tort liability is dependent on the existence of an authorizing statute or “ ‘enactment’ ” [citations], and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. [Citation.] Duty cannot be alleged simply by stating “ ‘defendant had a duty under the law’ ”; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged.” (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.) Claims based upon statutory liability must be pled to allege facts demonstrating the right to recover under the statute. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.)

Here, the FAC alleges claims for money damages against the City. (FAC, ¶¶ 11, 14.) However, the FAC does not allege compliance with the Tort Claims Act, Government Code section 900 et seq. (See FAC.) There are no allegations in the FAC indicating that plaintiff presented a claim in the manner set forth in Government Code section 910. (See *ibid.*) Plaintiff states he “attempted” to “appeal” his termination pursuant to Government Code section 911.2 (pertaining to time to present a claim), but this does not constitute compliance with the Tort Claims Act. (See Government Code §§ 910 [contents of claims], 911.2 [time to present claims], 915-915.4 [manner of presentation].) The complaint also does not state facts essential to the existence of statutory liability including the existence of a statutory duty and breach of that duty.

(4) FEHA Claims

The Amended Decl. attached to the FAC attempts to state a FEHA discrimination claim. Under FEHA, “[i]t is an unlawful employment practice ... [¶] ... [f]or an employer, because of the race, religious creed, color, national origin, ancestry, physical

disability, mental disability, reproductive health decision making, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or veteran or military status of any person, to refuse to hire or employ the person or to refuse to select the person for a training program leading to employment, or to bar or to discharge the person from employment or from a training program leading to employment, or to discriminate against the person in compensation or in terms, conditions, or privileges of employment.” (Gov. Code, § 12940, subd. (a).)

It is also unlawful “[f]or any employer, labor organization, employment agency, or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part.” (Gov. Code, § 12940, subd. (h).)

It is also unlawful “[f]or an employer, labor organization, employment agency, apprenticeship training program or any training program leading to employment, or any other person, because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, reproductive health decision making, or veteran or military status, to harass an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract.” (Gov. Code, § 12940, subd. (j)(1).) “Harassment of an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract by an employee, other than an agent or supervisor, shall be unlawful if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action.” (Ibid.)

“[A]ctions seeking redress for employment discrimination pursuant to [FEHA] are not subject to the claim-presentation requirements of the Tort Claims Act [Citation.]” (Snipes v. City of Bakersfield (1983) 145 Cal.App.3d 861, 863.) FEHA sets forth a different administrative process. “An employee who wishes to file suit under the FEHA ‘must exhaust the administrative remedy provided by the statute by filing a complaint with the’ [Department of Fair Employment and Housing or] DFEH, ‘and must obtain from the [DFEH] a notice of right to sue.’ [Citation.] ‘The timely filing of an administrative complaint’ before the DFEH ‘is a prerequisite to the bringing of a civil action for damages.’” (Guzman v. NBA Automotive, Inc. (2021) 68 Cal.App.5th 1109, 1117.)

“California Code of Regulations, title 2, section 10005 outlines the requirements for obtaining a right-to-sue notice. Subdivision (a) provides that a person may obtain an ‘immediate’ right-to-sue notice, i.e., a right-to-sue notice issued without the DFEH conducting any investigation into the alleged discrimination: [¶] ‘(a) Any person claiming to be aggrieved by an employment practice made unlawful by the FEHA may forgo having the department investigate a complaint and instead obtain an immediate right-to-sue notice. A right-to-sue notice issued by the department shall state that the aggrieved party may bring a civil action against the person or entity named in the complaint within one year from the date of the notice.’ [Citation.]” (Clark v. Superior Court (2021) 62 Cal.App.5th 289, 300, internal quotation marks omitted; see Cal. Code Regs., tit. 2, § 10005, subd. (a).)

The FAC does not allege exhaustion of administrative remedies under FEHA or that a right-to-sue notice has been issued by the DFEH. There are no allegations in the FAC indicating that plaintiff has requested a right-to-sue letter from DFEH. The FAC does not state facts indicating what employment action was taken against plaintiff based on actions and motivations prohibited by FEHA. (See Gov. Code, § 12940.) The FAC fails to set forth sufficient facts to constitute a cause of action under FEHA.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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